

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUWT063626: SELINA NEVAREZ vs LATARA ENTERPRISE, INC. DBA
FOUNDATION LABORATORY**

07/08/2026 in Department 21

Motion to Compel Binding Arbitration and Stay Proceedings

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion to Compel Binding Arbitration and Stay Proceedings (*Unopposed*)

Tentative Ruling: Defendant Latara Enterprise, Inc. dba Foundation Laboratory’s motion to compel binding arbitration and stay action is GRANTED.

The Court finds that Defendant has established a valid arbitration agreement and that the agreement encompasses Plaintiff’s claims. The Court finds the agreement is not procedurally or substantively unconscionable. The Court further finds the agreement meets the five minimum rules of fairness described in *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83.

The Court stays this matter pending arbitration and sets a review hearing regarding the status of arbitration for January 15, 2027, at 8:30 a.m. The parties shall serve and file a joint status report concerning the status of the arbitration not later than 10 calendar days before the hearing.

Counsel for moving party shall provide notice of this ruling

Background: Plaintiff Selina Nevarez alleges employment-related claims against Defendant, asserting 10 causes of action: disability discrimination, failure to accommodate, failure to engage in the interactive process, FEHA retaliation, CFRA interference, failure to prevent discrimination/retaliation, wrongful termination in violation of public policy, failure to provide compliant rest breaks, waiting-time penalties, and unfair competition.

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Defendant moves to compel arbitration under CCP §§ 1281, 1281.2, and 1281.4, and the Federal Arbitration Act.

Analysis: Defendant has met its burden to show the existence of an arbitration agreement. Defendant submits the declaration of Esther Boyamyan, Foundation Laboratory's Human Resources Manager, together with the arbitration agreement and Paycom audit records. Those records reflect that Plaintiff electronically signed the arbitration agreement on September 7, 2023, and that Defendant countersigned it on September 19, 2023. Plaintiff has filed no opposition and has not submitted evidence disputing her signature, assent, or the authenticity of the agreement.

The agreement's scope is broad. It covers claims arising out of employment, including wrongful termination, wages, compensation, benefits, violations of federal, state, city, or county law, and related disputes. Plaintiff's ten causes of action all arise from her employment relationship with Defendant. The claims therefore fall within the agreement.

The agreement also satisfies the requirements for arbitration of statutory employment claims under *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 102-103. It provides for a neutral arbitrator through AAA procedures, permits discovery, requires a written award, allows all remedies available in court, requires Defendant to pay AAA administrative fees and arbitrator fees, and applies mutually to both sides. Each party is responsible for their own attorney fees and costs unless ordered otherwise by the arbitrator.

The Court finds no basis to deny enforcement based on unconscionability. There is no evidence of procedural unconscionability or adhesion contract. The agreement appears mutual, does not limit statutory remedies, does not impose arbitration-specific costs on Plaintiff, and does not shorten the applicable limitations periods. The Los Angeles County venue provision and the agreement's use of AAA rules do not, without evidence of actual hardship or unfair surprise, establish unconscionability. Nor does the failure to attach AAA rules defeat enforcement where no challenge is directed to any specific "artfully hidden" term. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246.)

The statutory grounds for denial under CCP § 1281.2 are not shown. Waiver does not appear on this record; Defendant produced the arbitration agreement before suit, raised arbitration shortly after the complaint was filed, and timely filed this motion. Waiver is governed by ordinary contract principles, and no arbitration-specific prejudice requirement applies. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583.) No rescission, revocation, third-party conflicting-rulings issue, or other statutory ground for denial appears.

Defendant has also submitted evidence supporting application of the FAA, including that Foundation Laboratory uses out-of-state and international supplies, equipment, software, data systems, and vendors, and that Plaintiff used those materials and systems in her work.

Accordingly, Plaintiff is ordered to submit all claims asserted in this action to binding arbitration before the American Arbitration Association in Los Angeles County, consistent with the parties' arbitration agreement.

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This action is stayed in its entirety pending completion of arbitration. (CCP § 1281.4.)

Moving party to give notice.